ORION CLOUD SERVICES AGREEMENT

This Agreement is made between Orion Systems Ltd (the "Vendor") and Hartwell Logistics GmbH (the "Customer").

1. Definitions and Interpretation

1.1 "Services" means the services described in Schedule 1 to this Agreement.

1.2 "Confidential Information" means all non-public information disclosed by one party to the other.

1.3 References to clauses and Schedules are to the clauses of and Schedules to this Agreement.

2. Term and Renewal

2.1 This Agreement commences on 1 March 2025 and continues for an initial term of 36 months.

2.2 It renews automatically for successive periods of twelve months unless either party gives 90 days' written notice of non-renewal.

3. Fees and Payment

3.1 The Customer shall pay each undisputed invoice within 30 days of receipt.

3.2 Overdue amounts accrue interest at 4% per annum from the due date until payment.

4. Service Levels

4.1 The Vendor shall ensure that the Services are available at least 99.9% of the time in each calendar month.

4.2 If availability falls below this level the Customer is entitled to a service credit of 5% of the monthly fee for each full percentage point of shortfall.

5. Data Protection

5.1 The Vendor shall process Personal Data only on the Customer's documented instructions and in accordance with Article 28 of the GDPR.

5.2 The Vendor shall notify the Customer of any personal data breach within 48 hours of becoming aware of it.

6. Information Security

6.1 The Vendor shall maintain certification to ISO/IEC 27001:2022 throughout the term.

6.2 The Vendor shall commission an independent penetration test of the Services once a year and share a summary of the findings.

7. Intellectual Property

7.1 Each party retains ownership of the intellectual property it owned before the Effective Date.

7.2 All improvements to the Services made by the Vendor remain the property of the Vendor.

8. Limitation of Liability

8.1 Subject to clause 8.3, the total aggregate liability of either party under this Agreement shall not exceed USD 2,500,000.

8.2 Neither party is liable for indirect or consequential loss.

8.3 Nothing in this Agreement limits liability for death or personal injury caused by negligence, or for fraud.

9. Termination

9.1 Either party may terminate this Agreement by written notice if the other commits a material breach that is not remedied within 30 days of notice of the breach.

9.2 The Customer may terminate this Agreement for convenience on 180 days' written notice to the Vendor.

9.3 On termination the Vendor shall return or delete the Customer's data within 30 days.

10. Confidentiality

10.1 Each party shall keep the other's Confidential Information secret and use it only to perform this Agreement.

10.2 These obligations continue for 5 years after termination or expiry.

11. Force Majeure

11.1 Neither party is liable for delay caused by events beyond its reasonable control, including flood, fire, war and failure of public utilities.

11.2 If the event continues for more than 60 days either party may terminate this Agreement by written notice.

12. Governing Law and Jurisdiction

12.1 This Agreement is governed by the laws of England and Wales.

12.2 The courts of London have exclusive jurisdiction over any dispute arising from this Agreement.

13. Source Code Escrow

13.1 The Vendor shall deposit the source code of the Services with Meridian Escrow Services within 30 days of the Effective Date.

13.2 The escrow agent shall release the source code to the Customer if the Vendor becomes insolvent.